

THE TRAFFIC AND ROAD SAFETY ACT, 1998
(AMENDMENT) (No. 2) ACT, 2023

An Act to amend the Traffic and Road Safety Act, Cap. 361 to amend the Traffic and Road Safety Act, Cap. 361; to provide for a speed limit in the Act to ease the control of the speed limit through the express penalty scheme as opposed to court prosecution as provided for under the Roads Act, 2019; and to repeal section 52 of the Roads Act, 2019 and other related matters.

DATE OF ASSENT:

Date of Commencement:

BE IT ENACTED by Parliament as follows:

1. Commencement

This Act shall come into force on 1st July, 2023, save for clause 5 which commenced on 1st July, 2018.

2. Insertion of section 119A in principal Act

The principal Act is amended by inserting immediately after section 119, the following—

“119A. Speed limit

(1) The Minister may, by regulations, prescribe speed limits in respect of all public roads or sections of public roads.

(2) Notwithstanding the provisions of any other law, the Minister may, by statutory order, prescribe temporary maximum speed limits for motor vehicles, trailers or engineering plant of different classes or descriptions on any part of any road for such period as may be specified in the order.

(3) A person who fails to comply with a speed limit set under subsection (1) commits an offence and is liable, on conviction, to a fine not exceeding one hundred currency points or imprisonment not exceeding three years, or both.”

3. Amendment of the Roads Act, 2019

The Roads Act, 2019 is amended by repealing section 52.

4. Amendment to the Fourth Schedule

The principal Act is amended in Schedule Four by substituting for items (b) and (c), the following—

Item	Motor vehicle	levy
“(b)	A motor vehicle which is nine years old or more from the year of manufacture; excluding goods vehicles.	50% of the CIF value

(c)	A motor vehicle which is nine years or more from the year of manufacture, and which is principally designed to carry goods	20% of the CIF value;”
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